

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUAS059711: GARY MCANALLY, et al. vs ATLANTIC RICHFIELD COMPANY,
et al.**

**07/15/2026 in Department 43
Demurrer**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motions:

1. J-M Manufacturing, Inc.'s Demurrer to P's Complaint
2. J-M Manufacturing, Inc.'s Motion to Strike
3. B&R Supply, Inc.'s Demurrer to P's Complaint
4. B&R Supply, Inc.'s Motion to Strike

Tentative Rulings: The demurrers of J-M Manufacturing Company, Inc. and B&R Supply, Inc. to the First Cause of Action (Negligence), the Second Cause of Action (Strict Liability), the Third Cause of Action False Representation) and the Fourth Cause of Action (Intentional Tort) are overruled. The complaint sufficiently alleges factual support for these causes of action and is not uncertain.

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The motions of J-M Manufacturing Company Inc.'s and B&R Supply, Inc. to strike the references to punitive damages and the allegations of ratification/involvement of managing agents, officers and directors are denied. For pleading purposes, the allegations are sufficient, as they exceed bare bones assertions of malice, oppression or fraud. (Civ. Code §3294.)

The Complaint alleges that J-M, B&R and with other defendants, researched, manufactured, fabricated, designed, modified, tested or failed to test, labeled, assembled, distributed, supplied, sold, inspected, serviced, installed, repaired, marketed, warranted, packaged, and advertised asbestos and asbestos-containing products. (Complaint, ¶¶ 4-6.) The Complaint alleges that those products were defective and unsafe for their intended use because inhalation of asbestos fibers causes serious disease and death; that J-M, B&R and other defendants knew of the hazards of asbestos exposure; that exposed persons, including Plaintiff Gary McAnally, did not know of those hazards; that J-M, B&R and other defendants failed to warn, concealed and suppressed known dangers, and continued to place asbestos-containing products into the stream of commerce; and that Plaintiff was exposed to asbestos-containing products in a reasonably foreseeable manner, causing asbestos-related disease, including asbestosis and other lung injury. (Complaint, ¶¶ 8-13, 19-29). As alleged, J-M and B&R and other defendants acted with conscious disregard of the safety of exposed persons because they had prior knowledge of a substantial risk of injury or death resulting from asbestos exposure, including mesothelioma, lung cancer, asbestosis, and asbestos pleural disease. (Complaint, ¶ 23.) The conduct was ratified by managing agents, directors and/or officers. (Complaint at ¶¶16&17.). These allegations are sufficient to support a prayer for punitive damages.

J-M Manufacturing Company, Inc. and B&R Supply, Inc. filed answers concurrent with their demurrers.

Plaintiff is ordered to serve notice of the Court's ruling.